

TENTATIVE RULINGS
Judge Lindsey E. Martínez, Dept. C24

“Civility is not about etiquette. This is not a matter of bad manners. Incivility slows things down, it costs people money – money they were counting on their lawyers to help them save. And it contravenes the Legislature’s directive that ‘all parties shall cooperate in bringing the action to trial[.]’ (Code Civ. Proc., § 583.130.)” (*Masimo Corp. v. The Vanderpool Law Firm, Inc.* (2024) 101 Cal. App. 5th 902, 911; *see generally* OCBA Civility Guidelines.)

- The court encourages remote appearances to save time and reduce costs.
- All hearings are open to the public.
- You must provide your own court reporter and interpreter, if required.
- Call the other side and ask if they will submit to the tentative ruling. If everyone submits, call the clerk. The tentative ruling will become the order. If anyone does not submit, there is no need to call the clerk.
- The court will hold a hearing. The court may rule differently at the hearing. (*See Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

Hearing Date: September 28, 2026 at 1:30 pm

Rulings Posted: 9/24/26 at 11:30am

#	Case Name	Tentative
201	<i>Zurita vs. Joe MacPherson Infiniti</i>	Before the court is a motion to strike or tax costs filed by plaintiff Martin Zurita (Plaintiff). The motion is GRANTED. Defendant Joe Macpherson Infiniti dba AutoNation Infiniti Tustin (Defendant) was the prevailing party in this action. (ROA 100.) Judgment was subsequently entered and Defendant was permitted to recover costs. (ROA 111.) Although Defendant is the prevailing party in this action under Code of Civil Procedure section 1032, only certain costs are permitted to be recovered. Plaintiff moves to strike claimed transcript costs of \$2,176. Pursuant to Code of Civil Procedure section

		1033.5, subdivision (a)(9), transcript costs are only recoverable if they are ordered by the court. Otherwise, transcript costs are prohibited. (Code Civ. Proc., § 1033.5, subd. (b)(5).) As this court did not order transcripts, those costs are not recoverable by Defendant. (<i>Moore v. City & Cnty. of San Francisco</i> (1970) 5 Cal. App. 3d 728, 739–40.) Plaintiff shall give notice.
202	<i>Siguenza vs. Nynes Collectives LLC</i>	<u>Motion for Sanctions</u> Before the court is a motion for evidentiary sanctions, or alternatively, for monetary sanctions filed by plaintiffs Edward Siguenza and Nerherley Machuca Rivas (Plaintiffs together) related to depositions. The motion is DENIED. The court may issue evidentiary and/or monetary sanctions for abuses of the discovery process, including failure to comply with a court order or failure to submit to an authorized method of discovery. (Civ. Proc. Code §§ 2023.010, 2023.030, and 2025.450.) Plaintiffs contend defendants Nynes Collectives LLC, fka Global Beauty, Inc., and Allen Nguyen (Defendants together) failed to produced persons most knowledgeable and/or failed to appear at depositions previously ordered by the court. The court acknowledges there were issues with Defendants scheduling the depositions between the IDC hearing on September 8, 2025, and December, however the depositions do appear to have been on calendar in January. Plaintiffs’ counsel subsequently took those off calendar due to trial. (Haddad Decl. ¶ 25-26 and 30, Ex. 17.) Instead of immediately rescheduling the depositions, Plaintiffs waited almost four months before sending new notices of depositions. (Haddad Decl. ¶ 32.) When current defense counsel stated he had trial on those dates, defense counsel offered on two occasions the alternative date of the first week of June. (Rumm Decl. ¶¶ 6-7;